

54 & 55 Vict.
c. 34.

(c) Subsection (1) of section five of this Act shall apply to the councils of any two or more adjoining counties in like manner as it applies to the local authorities therein mentioned, and subsection (3) of the said section shall apply to the officers or servants of any local authority within the meaning of the Local Authorities Loans (Scotland) Act, 1891.

(d) This Act shall not apply to any county or town clerk who shall be fifty-five years of age or more at the appointed day, or to the town clerk of any royal burgh holding office at the appointed day, if within six months after such appointed day he gives notice in writing to the council of his desire to continue to hold his office on the same terms as he held it prior to the appointed day.

(e) Section twenty-eight of this Act and the reference to the Arbitration Act, 1889, shall not apply.

Short title.

32. This Act may be cited as the Local Government and other Officers' Superannuation Act, 1922.

CHAPTER 60.

An Act to amend the law relating to Chancery Lunatics. [4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Substitution
of Master
and Assis-
tant Master
for two
Masters in
Lunacy.

1.—(1) Instead of two Masters in Lunacy there shall be a single Master in Lunacy who shall be assisted by one of his officers and that officer shall be termed the Assistant Master in Lunacy.

(2) The Assistant Master in Lunacy shall, subject to rules in lunacy and the directions of the Master, be capable of exercising the jurisdiction of the Master as regards administration and management.

(3) No person shall be qualified to be appointed assistant master unless he is at the time of his appointment either an officer of the Master or a barrister or solicitor of not less than five years' standing. The appointment of the assistant master shall be made by the Lord Chancellor.

2.—(1) Any jurisdiction which may be exercised by the Judge or Master in the case of a lunatic not so found by inquisition may be exercised by the Judge or Master in the case of a lunatic so found. Amendments
as to pro-
cedure.

(2) Sections one hundred and thirty-three to one hundred and forty-three (inclusive) of the Lunacy Act, 1890 (as amended by any subsequent enactment), shall apply and extend to trustees and mortgagees who are criminal lunatics. 52 & 53 Vict.
c. 5.

(3) The power of the High Court to make orders under sections one hundred and thirty-five to one hundred and forty-three (inclusive) of the said Act (as amended by any subsequent enactment) in relation to lunatics who are mortgagees shall extend to cases where—

(a) the lunatic is a trustee of part only of the mortgage money, and notwithstanding that he is beneficially interested in any part thereof; and

(b) the lunatic has become a trustee of the mortgaged property merely by reason of the mortgage money having been paid off;

and in those cases the Judge in Lunacy shall have no jurisdiction.

(4) Proceedings in the High Court under those sections one hundred and thirty-five to one hundred and forty-three (as amended) shall be entitled in the matter of the Trustee Act, 1893.

(5) Where money has been lent or advanced on mortgage by two or more persons jointly, and one such person is a lunatic, the lunatic mortgagee, for the purposes of section one of the Lunacy Act, 1911, shall not be deemed to be a mortgagee who is also a trustee. 56 & 57 Vict.
c. 53.

1 & 2 Geo. 5.
c. 40.

(6) Where there are proceeds of sale of copyhold or customary lands standing in court to the credit of the estate of a lunatic, the proceeds may, on the death of the lunatic, be paid out to his legal personal representative,

without the necessity of obtaining the consent of the customary heir or any other person; but nothing in this provision shall prejudice any beneficial interest of any person in such proceeds.

(7) The indemnity conferred by section three hundred and thirty-three of the Lunacy Act, 1890, on the Bank of England and other persons for acts and things done or permitted to be done pursuant to that Act or an order purporting to be made thereunder shall extend to acts and things done or permitted to be done pursuant to any certificate, direction or authority made or given by the Judge or the Master under that Act.

54 & 55 Vict.
c. 65. (8) Amongst the powers which by virtue of section twenty-seven of the Lunacy Act, 1891, may be exercised by the Master there shall be included the power of making orders for the purpose of preserving so far as possible in the administration of the property of the lunatic the quality, tenure and devolution of the property.

Short title
and con-
struction.

3.—(1) This Act may be cited as the Lunacy Act, 1922, and shall be construed as one with the Lunacy Acts, 1890 to 1911, and those Acts and this Act may be cited together as the Lunacy Acts, 1890 to 1922.

(2) This Act shall not apply to Scotland or Ireland.
